

French Ambassador stated that one of the defendants was a State-created and controlled entity which administered potash mines in Alsace-Lorraine, and the proceeds from its sales were used for government purposes, 11/15 percent of the stock being owned by the French Government. The State Department advised that State-owned commercial entities as agencies of a foreign government had no immunity different from private foreign entities. The court, recognizing the immunity of a foreign sovereign and his property even if commercial, refused to grant immunity to the defendant corporation, which it felt was not the same as the government.

Certainly, the consistency in the last two cited cases above lies only in the acceptance of the State Department's suggestions which, being based upon other motives need not be consistent. If a conclusion could be drawn embracing the decisions of the courts, it would include the observation that, if the court is so inclined, it will obey the suggestions of the State Department, but not invariably. This choice is not only permissive, in spite of the dicta that it is the court's duty to follow the suggestion, it is a power inherent in a jurisprudential system wherein the judiciary is fundamentally not beholden to the executive.¹³⁷

¹³⁷ Cf. *Matter of U. S. of Mexico v. Schmuck*, 293 N. Y. 264, 56 N. E. 2d 577 (1945) (the State Dep't suggested immunity for a Mexican State-owned entity, and declared that it was the duty of the court to dismiss the action for want of jurisdiction, but the court stated that the judicial branch always has the right to determine whether by contract, the sovereign or its agent consented to be sued).